

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34, RICHMOND
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 12/02/2025

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT
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The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.

Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: L23-00312

CASE NAME: BANK OF AMERICA N.A. VS. PARDEEP SINGH

*HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT FILED BY PLAINTIFF ON 8/7/25

FILED BY:

TENTATIVE RULING:

Plaintiff Bank of America, N.A. ("Plaintiff") filed a Motion to Vacate Dismissal and Enter Judgment under Terms of Stipulated Settlement on August 7, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on October 28, 2025.

The Court previously continued the matter to December 2, 2025, 9:00 a.m. in Department 34 of the Court to ensure that notice of the hearing has properly been given to the Defendant. Plaintiff was ordered to give notice of this continued hearing date on the pending motion. See Order entered November 10, 2025.

No further filings of record on the Court's docket indicate that any such notice was given by Plaintiff to Defendant. **An Amended Notice of Motion now appears on the Court's docket with a filing date of October 3, 2025, with notice of the prior October 28, 2025 date. However, no further Amended Notice of Motion appears with notice of the current December 2, 2025 hearing date.**

Background

The parties entered into that certain settlement agreement filed on April 21, 2023 (the "Settlement Agreement"), the terms of which included payment by the defendant Pardeep Singh ("Defendant") in the amount of \$21,227.71, plus costs, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Settlement Agreement, ¶¶1-4; see also Declaration filed as part of Motion to Enter Stipulated Judgment after Default ("Supporting Declaration"), ¶¶2-3. The Court hereby takes judicial notice of the Settlement Agreement. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. See Settlement Agreement, ¶¶1-4 and 7.

Defendant defaulted on the Payment Terms and Conditions. Supporting Declaration, ¶5. Defendant failed to cure after notice. *Id.* at ¶6 and **Exhibit A** thereto.

After credit for amounts paid, there remains \$14,102.71 due and owing, plus costs of \$518.50, for a total of \$14,621.21. See Supporting Declaration, ¶¶7-8.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion. **However, THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was served**

with notice of the new hearing date.

2. Subject to paragraph no. 1 above, the Court finds that Defendant is in default of the Settlement Agreement.
3. Subject to paragraph no. 1 above, the Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$14,102.71, plus costs of \$518.50, for a total judgment of \$14,621.21.
4. Subject to paragraph no. 1 above, Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

2. 9:00 AM CASE NUMBER: L23-03178

CASE NAME: DISCOVER BANK VS. CARL CASSADAY

***HEARING ON MOTION IN RE: ENTER JUDGMENT PURSUANT TO CCP 6646**

FILED BY: DISCOVER BANK

TENTATIVE RULING:

Plaintiff Discover Bank ("Plaintiff") filed a Motion to Enter Judgment on September 24, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 2, 2025.

Background

The parties entered into that certain settlement agreement filed on October 18, 2023 (the "Settlement Agreement"), the terms of which included payment by the defendant Carl Cassaday ("Defendant") in the amount of \$8,845.32, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Plaintiff's Counsel filed September 24, 2025 ("Supporting Declaration"), ¶15 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the amount of \$11,015.34 plus costs in the event of a default. *Id.*, **Exhibit A**, ¶¶2-6.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶17. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶16.

After credit for amounts paid, there remains \$9,215.34 due and owing, plus costs of \$505.70. See Supporting Declaration, ¶¶17.

Analysis

Defendant was duly served with the motion. The motion is unopposed.